

1. Title and Preamble

This Mutual Non-Disclosure Agreement (the "Agreement") is entered into on this [Date], by and between SignAura, a company incorporated under the Companies Act, 2013 with its registered office at [Address] ("Disclosing Party"), and Google, a company incorporated under the laws of [Country] with its principal place of business at [Address] ("Receiving Party").

Recitals

WHEREAS, the Disclosing Party possesses certain confidential information relating to its business plans, strategies, technology, and other proprietary matters; and

WHEREAS, the Receiving Party desires to receive such confidential information for the purpose of evaluating a potential business relationship (the "Purpose");

NOW, THEREFORE, in consideration of the mutual covenants and agreements herein contained, the parties hereto agree as follows:

2. Definition of Confidential Information

"Confidential Information" means any non-public, proprietary, or confidential information disclosed by one party to the other party during the term of this Agreement, including but not limited to business plans, strategies, technology, processes, designs, and data (collectively, "Information"). The Information shall be deemed Confidential Information if marked as such or if its confidentiality is reasonably apparent from the circumstances.

3. Obligations of Receiving Party

The Receiving Party agrees that it will hold all Confidential Information in strict confidence and not disclose it to any third party without the prior written consent of the Disclosing Party, except as required by law. The Receiving Party shall use the Confidential Information solely for the Purpose and shall take reasonable steps to protect such information from unauthorized disclosure or use.

4. Exclusions from Confidential Information

The term "Confidential Information" does not include any information that:

- (a) is publicly known at the time of disclosure;
- (b) becomes publicly known through no fault of the Receiving Party;
- (c) was in the possession of the Receiving Party prior to disclosure; or
- (d) is independently developed by the Receiving Party without reference to the Confidential Information.

5. Term and Duration of Confidentiality Obligations

The obligations under this Agreement shall commence on the date hereof and shall continue for a period of two (2) years from the date of receipt of the Confidential Information, unless terminated earlier in accordance with this Agreement.

6. Intellectual Property Rights

Nothing contained herein shall be construed as granting any rights or licenses to either party's intellectual property rights. The ownership of all intellectual property rights in and to the Confidential Information remains with the Disclosing Party.

7. Return or Destruction of Information

Upon termination of this Agreement, the Receiving Party shall return or destroy all copies of the Confidential Information in its possession, provided that a copy may be retained for record-keeping purposes only.

8. Remedies for Breach

In the event of any breach of this Agreement by either party, the non-breaching party shall have the right to seek injunctive relief and damages without waiving any other rights or remedies available at law or in equity.

9. Governing Law and Jurisdiction

This Agreement shall be governed by and construed in accordance with the Laws of India, with the courts of Gujarat having exclusive jurisdiction over any disputes arising out of or related to this Agreement.

10. General Provisions

(a) Severability: If any provision of this Agreement is found to be invalid or unenforceable, such provision shall be severed from the remaining provisions, which shall continue in full force and effect.

(b) Entire Agreement: This Agreement constitutes the entire agreement between the parties with respect to its subject matter and supersedes all prior agreements and understandings, whether written or oral.

(c) Amendment: No amendment or modification of this Agreement shall be valid unless made in writing and signed by both parties.

(d) Waiver: The failure of either party to enforce any provision of this Agreement shall not constitute a waiver of that provision or any other provision hereof.

11. Signature Blocks

IN WITNESS WHEREOF, the parties hereto have executed this Mutual Non-Disclosure Agreement as of the date first above written.

SignAura By: _____ Name: [Name] Title: [Title]

Google By: _____ Name: [Name] Title: [Title]